



CHAPTER clviii.

An Act to extend the time for the purchase of land for the construction of waterworks tramways street widenings and other works by the Rhondda Urban District Council to authorise the Council to construct new gasworks and to confer upon the Council further powers with regard to the health improvement and local government of the district and for other purposes. [4th August 1905.]

A.D. 1905.

WHEREAS the Rhondda Urban District is co-extensive with the parish of Ystradyfodwg in the county of Glamorgan and is governed for local and sanitary purposes by the Rhondda Urban District Council (in this Act referred to as "the Council") :

And whereas the Rhondda Urban District was until the thirtieth day of July one thousand eight hundred and ninety-seven known as the urban district of Ystradyfodwg but by a resolution of the urban district council of Ystradyfodwg with the sanction of the Glamorgan County Council the names of the district council and urban district were changed and have since been known as the Rhondda Urban District Council and the Rhondda Urban District respectively :

And whereas by the Ystradyfodwg Urban District Council (Gas and Water) Act 1896 (herein-after called "the Act of 1896") the Council were authorised to purchase and acquire the gas and water undertakings of the Ystrad Gas and Water Company and to make and maintain certain additional waterworks :

And whereas by the Rhondda Urban District Council Act 1899 (herein-after called "the Act of 1899") the Council were authorised to construct a tramroad and additional waterworks and

A.D. 1905. the periods limited for the compulsory purchase of lands for and the completion of the waterworks authorised by the Act of 1896 were extended as therein provided :

And whereas by the Rhondda Urban District Council (Tramways &c.) Act 1902 (herein-after called "the Act of 1902") the periods limited for the compulsory purchase of lands for and the completion of the waterworks authorised by the Act of 1896 and the Act of 1899 were extended as therein provided :

And whereas it is expedient that the periods limited for the compulsory purchase of lands for and the completion of the waterworks authorised by the Act of 1896 and by the Act of 1899 should be further extended as herein-after provided :

And whereas by the Act of 1902 the Council were empowered to construct tramways new road street widenings and other works in that Act described :

And whereas it is expedient that the period limited for the compulsory purchase of lands for the tramways new road street widenings and other works authorised by the Act of 1902 should be extended as herein-after provided :

And whereas it is expedient that further and better provisions be made with reference to buildings streets and sanitary matters and for the improvement health and local government of the district and that the powers of the Council in relation thereto should be enlarged and extended :

And whereas it is expedient that the Council should be empowered to borrow money as in this Act mentioned :

And whereas an estimate has been prepared by the Council for the purchase of lands for and for the erection of gasworks and such estimate amounts to the sum of twenty thousand pounds :

And whereas the works included in such estimate are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas the purposes of this Act cannot be attained without the authority of Parliament :

And whereas an absolute majority of the whole number of the Council at a meeting held on the twenty-fifth day of November one thousand nine hundred and four after ten clear days notice by public advertisement of such meeting and of the purpose thereof in the Rhondda Leader a local newspaper circulating in the district such notice being in addition to the ordinary notices

A.D. 1905.

required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate :

And whereas such resolution was published twice in the *Rhondda Leader* a newspaper circulating in the district and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the thirteenth day of January one thousand nine hundred and five being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the *Rhondda Urban District Council Act 1905*. Short title.

2. This Act is divided into Parts as follows :—

Division of
Act into
Parts.

- Part I.—Preliminary.
- Part II.—Water.
- Part III.—Tramways Street Widenings &c.
- Part IV.—Gas.
- Part V.—Streets Buildings &c.
- Part VI.—Sky-signs Hoardings &c.
- Part VII.—Infectious Diseases.
- Part VIII.—Tuberculosis.
- Part IX.—Common Lodging-houses.
- Part X.—Sanitary.
- Part XI.—Finance and Miscellaneous.

A.D. 1905.

Incorpora-
tion of Acts.

3. The following Acts and parts of Acts so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act namely :—

The Lands Clauses Acts except the provisions thereof with respect to the taking of lands otherwise than by agreement and except section 127 of the Lands Clauses Consolidation Act 1845 :

The Gasworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit and except section 38 relating to accounts and provided that section 13 of that Act shall be read as if the words “or any premises” were inserted after the words “private building”) :

The Gasworks Clauses Act 1871 (except section 7 relating to shareholders section 8 relating to the appointment of a receiver and section 35 relating to accounts &c.).

Interpreta-
tion.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The district” means the Rhondda Urban District ;

“The Council” means the urban district council of the district ;

“The district fund” and “the general district rate” mean respectively the district fund and general district rate of the district ;

“The Act of 1896” means the Ystradyfodwg Urban District Council (Gas and Water) Act 1896 ;

“The Act of 1899” means the Rhondda Urban District Council Act 1899 ;

“The Act of 1902” means the Rhondda Urban District Council (Tramways &c.) Act 1902 ;

“The gas undertaking” means the gas undertaking of the Council ;

“The gas revenue” means all revenues of the gas undertaking ;

A.D. 1905.

- "The clerk" "the surveyor" "the medical officer" "the inspector of nuisances" mean respectively the clerk and surveyor to the Council and the medical officer of health and inspector of nuisances of the district and include any persons duly authorised to act temporarily in those capacities respectively and "the office" in relation to any of the said offices means the office of that officer at the Council offices or at such other place in the district as the Council may from time to time appoint ;
- "Daily penalty" means penalty for each day on which an offence is continued after conviction ;
- "Infectious disease" means any infectious disease to which the Infectious Disease (Notification) Act 1889 applies for the time being within the district ;
- "Dairyman" means any cowkeeper purveyor of milk or occupier of a dairy ;
- "Dairy" means and includes any farm farmhouse cowshed milk-store milk-shop or other place from which milk is supplied or in which milk is kept for purposes of sale ;
- "Statutory security" means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council ;
- "Sky-sign" means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part upon over or above any house building or structure which or any part of which sky-sign shall be visible against the sky from some point in any street or public way and includes all and every part of any such post pole standard framework or other support The expression "sky-sign" shall also include any balloon parachute or similar device employed wholly or in part for the purposes of any advertisement or announcement on over or above any house

A.D. 1905.

building structure or erection of any kind or on or over any street or public way but shall not include—

(1) Any flagstaff pole vane or weathercock unless adapted or used wholly or in part for the purposes of any advertisement or announcement ;

(2) Any sign or any board frame or other contrivance securely fixed to or on the top of the wall or parapet of any building or on the cornice or blocking course of any wall or to the ridge of a roof Provided that such board frame or other contrivance be of one continuous face and not open work and do not extend in height more than three feet above any part of the wall or parapet or ridge to against or on which it is fixed or supported ;

(3) Any word letter model sign device or representation as aforesaid relating exclusively to the business of a railway company and placed wholly upon or over any railway railway station yard platform or station approach belonging to a railway company and so placed that it cannot fall into any street or public place.

PART II.

WATER.

Extension
of time for
compulsory
purchase of
land for
waterworks
purposes.

5. The powers granted by the Act of 1896 as extended by the Act of 1899 and the Act of 1902 and the powers granted by the Act of 1899 as extended by the Act of 1902 for the compulsory purchase and taking of lands for the purposes of the waterworks respectively authorised by those Acts other than Work No. 7 authorised by the Act of 1899 are hereby extended and may be exercised at any time within but shall not be exercised after the expiration of three years from the date of the passing of this Act.

Extending
period limited for completion of
waterworks.

6. The period limited by the Act of 1896 as extended by the Act of 1899 and the Act of 1902 and the period limited by the Act of 1899 as extended by the Act of 1902 for the completion of the waterworks authorised by those Acts other than Work No. 7 authorised by the Act of 1899 are hereby extended to five years from the second day of July one thousand nine hundred and six and if the same be not completed at the expiration of such extended periods such powers shall cease except as regards so much of the said works as are then completed Provided always that nothing in this section shall restrict the Council from extending their works

mains and pipes from time to time whenever it may be necessary for maintaining and extending their supply within their limits for the time being for the supply of water. A.D. 1905.

7. Section 42 of the Act of 1896 limiting the rates or charges at which water is to be supplied for domestic purposes is hereby repealed and from and after the passing of this Act the Council shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of the Act of 1896 or this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at the rates not exceeding the rates per annum herein-after specified (that is to say):—

Rates at
which water
is to be sup-
plied for
domestic
purposes.

Where the rateable value of the premises so supplied with water shall not exceed four pounds at a rate per annum not exceeding eight shillings and eightpence ;

Where such rateable value shall exceed four pounds and shall not exceed six pounds at a rate per annum not exceeding thirteen shillings ;

Where such rateable value shall exceed six pounds and shall not exceed eight pounds at a rate per annum not exceeding fifteen shillings and twopence ;

Where such rateable value shall exceed eight pounds and shall not exceed ten pounds at a rate per annum not exceeding seventeen shillings and fourpence ;

Where such rateable value shall exceed ten pounds and shall not exceed twenty pounds at a rate per annum not exceeding one shilling and eightpence in the pound ;

Where such rateable value shall exceed twenty pounds and shall not exceed forty pounds at a rate per annum not exceeding one shilling and sixpence in the pound ;

Where such rateable value shall exceed forty pounds and shall not exceed sixty pounds at a rate per annum not exceeding one shilling and fourpence in the pound ;

Where such rateable value shall exceed sixty pounds at a rate per annum not exceeding one shilling and twopence in the pound.

The rateable value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or if there is no such list in force by the last rate made for the relief of the poor

A.D. 1905. — Provided that where the water rate is chargeable on the rateable value of a part only of any hereditament entered in the valuation list such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction. Nothing in this section shall entitle the Council in any case to demand for the water rate for any house or part of a house included in any division of the above scale a greater sum than they would be entitled to demand if the house or part thereof were of just sufficient rent or value to bring it within the next division of the said scale relating to premises of a higher rent or value whereon a lower rate per centum is chargeable.

Prevention
of plumbism.

8. All water supplied by the Council under this Act shall be properly and efficiently filtered or otherwise treated so as to prevent it acting on lead in such manner as to endanger the health of consumers and if the Council make default under this section they shall be liable to a penalty not exceeding ten pounds for every day during which such default shall continue.

PART III.

TRAMWAYS STREET WIDENINGS &c.

Extension
of time for
compulsory
purchase of
lands for
tramways
&c.

9. The powers granted by the Act of 1902 for the compulsory purchase and taking of lands for the purposes of the tramways new road street widenings and improvements by that Act authorised are hereby extended and may be exercised at any time within a period of one year from the passing of this Act.

PART IV.

GAS.

Power to
erect and
maintain
gasworks.

10. Subject to the provisions of this Act the Council may in or upon the lands described in the schedule to this Act erect maintain enlarge alter improve extend and renew or discontinue gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stopcocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of the Council for the supply of gas and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar and all other products or residuum of any materials employed in or resulting from the manufacture of gas.

11. The Council may upon the application of the owner or occupier of any premises abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

A.D. 1905.
Power to lay
pipes in
streets not
dedicated to
public use.

12. The Council may lay down place repair alter remove and renew subways mains pipes culverts wires and other apparatus for the purpose of procuring conducting or disposing of any oil and other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to lay
down pipes
for ancillary
purposes.

13. Twenty-four hours notice in writing shall be given to the Council by every gas consumer before he shall quit any premises supplied with gas by meter by the Council and in default of such notice the consumer so quitting shall be liable to pay to the Council the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Council to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent.

Gas con-
sumers to
give notice
before re-
moving.

14. A notice to the Council from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent.

Notice of dis-
continuance.

15. The Council may purchase or take on lease and may erect fit up and maintain upon the lands for the time being belonging to or leased by them for the purposes of the gas undertaking dwelling-houses for persons employed by them for the purposes of that undertaking.

Dwelling-
houses for
persons in
employ of
Council.

A.D. 1905.

PART V.

STREETS BUILDINGS &c.

As to plans
deposited
with Council.

16. The Council may retain any drawings plans elevations sections specifications and written particulars descriptions or details deposited with them in pursuance of any enactment for the time being in force in the district or any byelaw thereunder.

Approval of
plans to be
void after
certain inter-
vals.

17.—(1) The approval by the Council of any plan or section of any street or building and the notice of intention to lay out or construct such street or building shall be null and void if the execution of the work specified in such plan or section be not commenced within the following periods (that is to say):—

As to plans or sections approved after the passing of this Act within two years from the date of such approval ;

As to plans or sections approved before the passing of this Act within two years from the passing of this Act ;

and at the expiration of those respective periods fresh notice and deposit and approval shall unless the Council otherwise determine be requisite.

(2) The Council shall give notice of the provisions of this section to every person intending to lay out a new street or erect a new building the plans for which shall have been approved before the passing of this Act but the laying out of which street or erection of which building shall not have been commenced and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act.

Council may
define future
line of exist-
ing streets.

18.—(1) Where any street or road in the district repairable by the inhabitants at large is in the opinion of the Council narrow or inconvenient or without any sufficiently regular line of frontage the Council may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road The line which in any case the Council propose so to prescribe and define shall be distinctly marked and shown on a plan to be signed by and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Council formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner interested No new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street or road than such line.

A.D. 1905.
—

(2) The Council if required so to do by the owner shall purchase the land lying between any such line as aforesaid and the existing building line of the street or road where the same abuts upon the street or road and the same when purchased shall vest in the Council as part of the street or road.

(3) Whenever in any of the above cases the Council shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Council shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land or building full compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Council requiring the said line to be observed and kept.

(4) In estimating the amount of compensation or purchase money to be paid by the Council under this section the benefit accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said compensation or purchase money.

(5) If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings :

Provided that no penalty shall be incurred unless it is proved that such notice as herein-before provided for has been given.

19. No person except with the consent of the Council shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

No building
allowed until
street de-
fined.

20. When the plans of any new street are submitted to the Council for approval the Council may vary or alter the position direction or level thereof for the purpose of causing it to communicate in a direct or more direct line and with easy gradients with any other street adjoining or leading thereto and the Council

Power to
vary position
or direction
of new
streets.

A.D. 1905. — shall make compensation to any person who may be injuriously affected by the exercise of the powers conferred by this section.

For prevent-
ing soil and
sand from
being washed
into streets.

21.— (1) If in interfering with the surface of any land for building purposes or if by reason of the erection thereon of any new building the natural flow of any water is diverted or interfered with the owner of such land shall so far as reasonably practicable collect channel or otherwise deal with such water as to prevent the soil and sand of such lands from falling upon or being washed or carried into any public street sewer or gully in such quantities as to obstruct the highway or to choke up such sewer or gully and any expenses incurred by the Council in removing any soil or sand which shall have fallen upon or been washed or carried from any such land into any public street sewer or gully by reason of any neglect so to deal with such water as aforesaid shall be payable by the owner of such land and may be recovered in a summary manner.

(2) For the purposes of this section “public street” means a street repairable by the inhabitants at large and “private street” means a street not so repairable.

Prevention
and removal
of projec-
tions over
streets.

22. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 (incorporated with the Public Health Acts) shall with respect to the district extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection from or at any building and whether erected before or after the passing of this Act which the Council may determine to be dangerous or an obstruction to the safe and convenient use of any street.

Yards to be
paved.

23. If any yard or open space in connection with any dwelling-house erected before the passing of this Act shall not be so formed flagged asphalted or paved as to allow of the surface water being carried off to the drains the Council may give to the owner of such house notice in writing requiring him within fourteen days after such notice shall have been so given to proceed to form and to flag asphalt or pave such yard or open space for at least one hundred and fifty square feet immediately adjoining the offices of such house or for the whole extent of such yard or open space if the same be less than one hundred and fifty square feet in area so as to allow of the surface water being carried off to the drains and within twenty-eight days after such notice shall have been so given to complete such works and if the owner shall make default in complying with any of such requirements within

the respective times aforesaid the Council may execute the works necessary for carrying out such requirements and the expenses incurred by them in so doing shall be paid to the Council by such owner and may be recovered in a summary manner.

A.D. 1905.

24. All buildings or parts of buildings which may in future be erected on the site of any building or on any land which site or land in consequence of any improvement made by the Council becomes front land shall be erected according to such elevation as the Council approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes any door or entrance opening upon or communicating with the street or any wall or fence by the side of the street every such owner lessee or occupier shall make the building wall or fence in a line and the elevation thereof fronting to or towards the street in accordance with a drawing approved by the Council and in case the Council for the space of six weeks after any drawing of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings The Council shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence.

Elevation of
buildings
erected on
front lands to
be subject to
approval of
Council.

25.—(1) In the case of any building to be connected with any sewer and intended to be erected on lands where by reason of mining operations subsidences may be reasonably expected to occur the Council may regulate and prescribe the level at which the ground floor of any such building is to be and at the time of the deposit of plans and sections of any such building the Council may require any person intending to construct the same to specify the proposed level of the ground floor thereof.

Construction
of buildings
on lands
liable to sub-
sidence.

(2) Any person failing to comply with the requirements of the Council under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

26.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Council for permission so to do and such application shall be accompanied by a plan and

Temporary
and movable
buildings.

A.D. 1905. sections of the proposed building drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

(2) The Council shall within six weeks after the delivery of the plans and sections and specifications signify in writing their approval or disapproval of the intended building to the person proposing to erect or set up the same.

(3) The Council may attach to their approval any condition which they may deem proper with regard to the sanitary arrangement of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

(4) If any such building is commenced erected or set up without such application accompanied by such plans sections and specification or after the disapproval of the Council or before the expiration of six weeks without such approval or is in any respect not in conformity with any condition attached by the Council to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Council or any prolongation thereof the owner of such building shall be liable to a penalty for every such offence not exceeding forty shillings and to a daily penalty not exceeding the like amount and the Council may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion.

(5) The following buildings and works shall be exempt from the operation of this section :—

(A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the district in respect to new buildings and any tent not remaining for more than seven days ;

(B) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any building but such structure or erection shall be pulled down

or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Council may cause the same to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered in a summary manner from the owner of the building or from the person erecting or setting up the same at their discretion ;

A.D. 1905.

- (c) Any wooden or other structure or erection erected or set up for the purpose of protecting or of preventing the acquisition of right of light ; and
- (d) Buildings (other than a dwelling-house) erected or set up at the premises of any railway company and used for the purposes of their railway.

27. Where a temporary or other building referred to in the last preceding section is taken down or removed by the Council under the powers of this Part of this Act the Council may sell the materials thereof or any part of them and shall apply the proceeds of the sale in or towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance thereof to the owner of such building.

Power to sell
materials of
movable
buildings.

28. Nothing in this Part of this Act or in any byelaws to be made thereunder shall apply to any buildings (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connexion with their railway.

Exemption
of buildings
of railway
companies

29. The provisions of the section of this Act the marginal note whereof is "Council may define future line of existing streets" or of any byelaws to be made thereunder shall not apply to any erection excavation or obstruction used in connexion with the station goods yard or other works of the Rhondda and Swansea Bay Railway Company on the southern side of Treherbert Road.

For pro-
tection of
Rhondda and
Swansea
Bay Railway
Company.

PART VI.

SKY-SIGNS HOARDINGS &C.

30.—(1) Every hoarding or similar structure in or abutting on or adjoining any street or so near to any street that it might if not supported fall thereon shall be securely erected and maintained.

As to hoard-
ings and
other struc-
tures used
for adver-
tising pur-
poses.

(2) It shall not be lawful after the passing of this Act to erect wholly or partly for advertising purposes any such hoarding

A.D. 1905. — or similar structure to a greater height than twelve feet above the level of such street without the consent of the Council and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the maintenance of such hoarding or similar structure as the Council may determine.

(3) The owner or other person using any hoarding wall or other structure for advertising purposes whether erected before or after the passing of this Act shall at all times hereafter keep and maintain the same in proper and safe repair and condition and in the event of any paper affixed for advertising purposes to such hoarding wall or other structure falling off or becoming detached shall forthwith remove and clear away such paper.

(4) Any person who acts in contravention of any of the provisions of this section or who violates any conditions made or the terms of any consent given in pursuance of such provisions shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(5) Any consent or condition given or made under this section may be under the hand of the clerk or surveyor.

(6) Any person aggrieved by the refusal of the Council to grant such consent or by the conditions attached to such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after the decision of the Council is notified to him in writing under the hand of the clerk provided he gives twenty-four hours written notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt.

Regulations
as to sky-
signs.

31.—(1) It shall not be lawful to erect or fix to upon or in connexion with any building or erection any sky-sign and it shall not be lawful to retain any existing sky-sign so erected or fixed for a longer period than three years after the passing of this Act nor during that period except with the licence of the Council and in the event of such licence being granted then only for such period not exceeding three years from the passing of this Act and under and subject to such terms and conditions as shall be therein prescribed :

Provided that in any of the following cases a licence of the Council under this subsection shall become void namely :—

- (i) If any addition to any sky-sign be made except for the purpose of making it secure under the direction of the surveyor ;

(ii) If any change be made in the sky-sign or any part thereof ; A.D. 1905.

(iii) If the sky-sign or any part thereof fall either through accident decay or any other cause ;

(iv) If any addition or alteration be made to or in the house building or structure on over or to which any sky-sign is placed or attached if such addition or alteration involves the disturbance of the sky-sign or any part thereof ; or

(v) If the house building or structure over on or to which the sky-sign is placed or attached become unoccupied or be demolished or destroyed :

Provided also that if any sky-sign be erected or retained contrary to the provisions of this Act or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void it shall be lawful for the Council to take proceedings for the taking down and removal of the sky-sign in the same manner and with the same consequences as to recovery of expenses and otherwise in all respects as if it were an obstruction within the meaning of section 69 of the Towns Improvement Clauses Act 1847.

(2) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any approval licence or consent under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

PART VII.

INFECTIOUS DISEASES.

32. It shall not be lawful for any owner or driver of a public vehicle used for the carrying of passengers at separate fares knowingly to convey or for any other person knowingly to place in any such public vehicle a person suffering from any infectious disease or for a person suffering from any such disease to enter any such vehicle and every person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Prohibiting conveyance of infected person in public vehicle.

33. If any person suffering from any infectious disease is conveyed in any public vehicle the owner or driver thereof as soon as it comes to his knowledge shall give notice to the medical officer and shall cause such vehicle to be disinfected and if he fails so to do he shall be liable to a fine not exceeding five pounds and

Driver of infected person to give notice.

A.D. 1905. — the owner or driver of such vehicle shall be entitled to recover in a summary manner from the person so conveyed by him or from the person causing that person to be so conveyed a sum sufficient to cover any loss and expense incurred by him in connexion with such disinfection. It shall be the duty of the Council when so requested by the owner or driver of such public vehicle to provide for the disinfection of the same free of charge except in cases where the owner or driver conveyed such person knowing that he was so suffering.

Prohibition
of infected
person carry-
ing on busi-
ness.

34. No person suffering from an infectious disease shall milk any animal the milk of which is intended for consumption within the district or pick fruit intended for consumption within the district or engage in any trade or business connected with food intended for consumption within the district or carry on any trade or business in such manner as to be likely to spread such infectious disease within the district and if he does so he shall be liable to a penalty not exceeding twenty shillings.

Power to
compensate
persons ceas-
ing employ-
ment.

35. If any person shall at the request of the Council or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease within the district the Council may make compensation to him for any loss he may sustain by reason of such stoppage.

Penalty on
parent or
guardian
permitting
infected
child to at-
tend school.

36. No person being the parent or having the care or charge of a child who is or has been suffering from infectious disease shall after a notice from the medical officer that the child is not to be sent to school permit such child to attend school without having procured from the medical officer a certificate (which shall be granted free of charge upon application) that in his opinion such child may attend without undue risk of communicating such disease to others. If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

Power to me-
dical officer
to examine
scholars.

37. The medical officer may enter any public elementary school within the district at all reasonable times and examine the scholars attending the same and may exclude from attendance thereat for such period as he shall consider requisite any scholar who in his opinion is suffering from infectious disease or is likely to spread infection.

The medical officer shall upon the exclusion of any scholar in manner aforesaid give notice in writing to the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the

whole school) the person in charge of the department which such scholar attends and shall send a copy of such notice to the parent or guardian of the scholar. A.D. 1905.

Any person who shall obstruct the medical officer in carrying into effect the provisions of this section or who shall permit any scholar to attend school after he shall have been excluded as aforesaid and before the expiration of the period of exclusion shall be liable to a penalty not exceeding forty shillings.

38. Whenever any scholar who attends any school within the district shall be suffering from any infectious disease the principal or person in charge of such school or (if such school is divided into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends shall forthwith on becoming aware of the fact send notice thereof to the medical officer and shall furnish to the Council at their request a list of the scholars attending thereat together with their addresses and in default thereof shall be liable to a penalty not exceeding forty shillings. The Council shall pay to the person furnishing any such list as aforesaid for such list the sum of sixpence and at the rate of sixpence for every twenty-five scholars named therein. Principal of school to furnish list of scholars in certain cases.

39. Any person taking or sending to any public washhouse or to any person for the purpose of being washed or mangled any bedding clothing or other things which to his knowledge have been exposed to infection from infectious disease shall previously to so taking or sending the same cause such bedding clothing or other things to be disinfected by the Council or to the satisfaction of the medical officer and in default shall be liable to a penalty not exceeding forty shillings and the Council shall make provision for disinfecting and shall on application disinfect at their expense such bedding clothing and other things. Disinfection of clothes.

40.—(1) Where on the certificate of the medical officer it appears to the Council that any articles in any house or part thereof are in such a filthy and dangerous or unwholesome condition that health is affected or endangered thereby or that the cleansing or purifying or destroying of any such articles is requisite to prevent risk of or to check infectious disease the Council may cause any such articles in any such house or part thereof to be at their own expense cleansed or purified or they may destroy the same. Unwholesome articles to be purified.

A.D. 1905.

(2) If any owner suffer any unnecessary damage the Council shall compensate him for the same and the Council shall also reasonably compensate the owner for any articles destroyed.

Persons engaged in washing or mangling clothes to furnish lists of owners of clothes in certain cases.

41. Whenever it shall be certified to the Council by the medical officer that it is desirable with a view to prevent the spread of infectious disease that they should be furnished with a list of the customers of any person earning a livelihood or deriving gain by the washing or mangling of clothes the Council may require such person to furnish to them a full and complete list of the names and addresses of the customers for whom such person washes or mangles or has washed or mangled during the past six weeks and such person shall furnish such list accordingly and the Council shall pay to him for every such list the sum of sixpence and at the rate of sixpence for every twenty-five names contained therein and every person who shall wilfully or knowingly offend against this enactment shall for each such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Protection against infection of books from lending library.

42. No person shall take out of any public library any book for use in any house in which there is a person suffering from infectious disease and no person shall return to any such library any book which has been to his knowledge exposed to infection from any infectious disease but shall at once give notice that it has been exposed to infection to the inspector of nuisances and leave the book at the office of the inspector of nuisances who shall cause the same to be disinfected and then returned to the librarian or proprietor or destroyed and if destroyed the Council shall pay to the owner thereof its value Any person who shall offend against this enactment shall be liable to a penalty not exceeding forty shillings.

Dairymen to notify infectious disease among their servants.

43. Every dairyman supplying milk within the district from premises whether within or beyond the district shall notify to the medical officer all cases of infectious disease among persons engaged in or in connexion with his dairy as soon as he becomes aware or has reason to suspect that such infectious disease exists and any dairyman who makes default in so doing shall be liable to a penalty not exceeding forty shillings.

Medical officer may require dairymen to furnish lists.

44. If the medical officer has reasonable cause to believe that any person in the district is suffering from infectious disease attributable to milk supplied within the district he may by notice in writing require every person supplying milk to the person so

A.D. 1905.

suffering or to the house of which he is an inmate to furnish him with a list of all the farms dairies or places from which such person derives his supply of milk or from which he has derived his supply during the last six weeks and a list of the persons to whom he has within such six weeks supplied milk within the district and the Council shall pay to him for every such list the sum of sixpence and after the rate of sixpence for every twenty-five names contained therein and every such person failing to comply with such request shall for each such offence be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

45. If any dairyman shall at the request of the Council stop his milk supply within the district on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons residing within the district the Council may make compensation to him for any loss occasioned by such stoppage and any such compensation may be paid out of the district fund or general district rate.

Compensation to dairy-men.

46.—(1) Where it appears to the Council upon the certificate of the medical officer that the cleansing and disinfecting of any house or part thereof and of any articles therein likely to retain infection or the destruction of such articles would tend to prevent or check any infectious disease the Council may serve notice on the occupier or where the house or part thereof is unoccupied on the owner of such house or part thereof that the same and any such articles therein will be cleansed and disinfected or (as regards the articles) destroyed by the Council unless the person so notified informs the Council within a time to be specified in the notice from the receipt of the said notice that he will cleanse or disinfect the house or part thereof with any such articles or destroy such articles to the satisfaction of the medical officer as testified by certificate by him within a time fixed in the notice.

Cleansing of infected house and removal of persons therefrom.

(2) If either—

(A) Within the time specified as aforesaid from the receipt of the notice the person on whom the notice is served does not inform the Council as aforesaid ; or

(B) Having so informed the Council he fails to have the house or part thereof and any such articles disinfected or such articles destroyed as aforesaid within the time fixed in the notice ; or

A.D. 1905.

(c) The occupier or owner as the case may be without such notice gives his consent ;

the house or part thereof and the articles shall be cleansed and disinfected or such articles destroyed by the officers of and at the cost of the Council.

(3) For the purpose of carrying into effect this section the officers of the Council may enter on any premises between nine o'clock in the morning and six o'clock in the evening.

(4) When the Council have disinfected any house part of a house or any article under the provisions of this section they shall compensate the occupier or owner of such house or part of a house or the owner of such article for any damage thereby caused to such house part of a house or article and when the Council destroy any article under this section they shall reasonably compensate the owner thereof and the amount of any such compensation shall be recoverable in a summary manner.

(5) If the Council deem it necessary to remove from any house or part thereof all or any of the residents not being themselves sick on account of the existence or recent existence therein of infectious disease or for the purpose of disinfecting such house or part thereof they may make application to a justice and the justice if satisfied of the necessity of such removal may grant a warrant authorising the Council to remove such residents and imposing such conditions as to time and otherwise as to him may seem fit Provided always that no such warrant shall be necessary when the removal is carried out with the consent of any such resident or his parent or guardian The Council shall and they are hereby empowered to provide free of charge temporary shelter with any necessary attendants for such persons while prevented from returning to such house or part thereof.

(6) For the purposes of this section the word "house" includes any tent van shed or similar structure used for human habitation.

(7) The Council may for the purposes of this section either themselves build a place of reception or contract for the use of any place of reception Provided that for the purpose of building any such place of reception the Council may borrow under and subject to the provisions of this Act.

(8) Any expenses incurred by the Council under this section shall be paid out of the district fund and general district rate.

Byelaws re-
lating to hos-
pitals.

47. The Council may make byelaws for regulating the admission to and discharge of patients from any hospital for

infectious disease temporarily or otherwise provided by them and the conduct of patients therein and for preventing persons from entering such hospitals or the grounds thereof except with the consent of and subject to such conditions as may be imposed by the Council. A.D. 1905.

48. Where a person not being a pauper is received as a patient into any hospital for infectious disease the Council may themselves pay the whole or any part of the expenses arising out of the reception and maintenance of such person. Council may pay expenses of person in hospital.

49. When any person suffering from infectious disease whereof notice shall have been given to the medical officer shall die in the district of such disease the medical officer shall give notice thereof to the person responsible for the conduct of the burial of the body of such person and it shall not be lawful to transport such body by railway or other public conveyance (not being a conveyance reserved for such purpose) unless and until the medical officer has certified that every precaution necessary for the public safety has been adopted to his satisfaction and any undertaker and any person so responsible who shall after the giving of such notice knowingly remove or assist in removing such body without such certificate and any person who unless unaware of such notice shall procure or endeavour to procure the removal of such body without having obtained such certificate shall be liable to a penalty not exceeding ten pounds. Certificate required before removal by railway &c. of body of person dying by infectious disease.

50. The Council may provide or contract with any person or persons to provide nurses for attendance upon any person suffering from infectious disease within the district and may charge a reasonable sum for the service of any nurse so provided. Power to provide nurses.

51. The Council shall cause to be given public notice of the effect of the provisions of this Part of this Act by advertisement in a local newspaper and by handbills or otherwise in such manner as they think sufficient and this Part of this Act shall come into operation at such time not being less than one month after the first publication of such an advertisement as aforesaid as the Council may fix. Public notice to be given of provisions of Part VII.

PART VIII.

TUBERCULOSIS.

52. Every person who knowingly sells or suffers to be sold or used for human consumption within the district the milk of any cow which is suffering from tuberculosis of the udder shall be liable to a penalty not exceeding ten pounds. Penalty for selling milk of diseased cows.

A.D. 1905.

Penalty on
failing to iso-
late diseased
cows.

53. Any person the milk of the cows in whose dairy is sold or suffered to be sold or used for human consumption within the district who after becoming aware that any cow in his dairy is suffering from tuberculosis of the udder keeps or permits to be kept such cow in any field shed or other premises along with other cows in milk shall be liable to a penalty not exceeding five pounds.

Obligation to
notify cases
of tubercu-
losis.

54. Every dairyman who supplies milk within the district and has in his dairy any cow affected with or suspected of or exhibiting signs of tuberculosis of the udder shall forthwith give written notice of the fact to the medical officer stating his name and address and the situation of the dairy or premises where the cow is kept.

Any dairyman failing to give such notice as required by this section shall be liable to a penalty not exceeding forty shillings.

Power to
take samples
of milk.

55.—(A) It shall be lawful for the medical officer or any person provided with (and if required exhibiting) the authority in writing of the medical officer to take within the district for examination samples of milk produced or sold or intended for sale within the district.

(B) The like powers in all respects may be exercised outside the district by the medical officer or such authorised person if he shall first have obtained from a justice having jurisdiction in the place where the sample is to be taken an order authorising the taking of samples of the milk which order any such justice is hereby empowered to make.

Power to in-
spect cows
and to take
samples of
milk.

56.—(A) If milk from a dairy situate within the district is being sold or suffered to be sold or used within the district the medical officer or any person provided with (and if required exhibiting) the authority in writing of the medical officer may if accompanied by a properly qualified veterinary surgeon at all reasonable hours enter the dairy and inspect the cows kept therein and if the medical officer or such person has reason to suspect that any cow in the dairy is suffering from tuberculosis of the udder he may require the cow to be milked in his presence and may take samples of the milk and the milk from any particular teat shall if he so requires be kept separate and separate samples thereof be furnished.

(B) If the medical officer is of opinion that tuberculosis is caused or is likely to be caused to persons residing in the district from consumption of the milk supplied from a dairy situate within the district or from any cow kept therein he shall report thereon to

the Council and his report shall be accompanied by a report to be furnished to him by the veterinary surgeon and the Council may thereupon serve on the dairyman notice to appear before them within such time (being not less than twenty-four hours) as may be specified in the notice to show cause why an order should not be made requiring him not to supply any milk from such dairy within the district until the order has been withdrawn by the Council. A.D. 1905.

(c) If the medical officer has reason to believe that milk from any dairy situate outside the district from which milk is being sold or suffered to be sold or used within the district is likely to cause tuberculosis in persons residing within the district the powers conferred by this section may in all respects be exercised in the case of such dairy. Provided that the medical officer or other authorised person shall first have obtained from a justice having jurisdiction in the place where the dairy is situate an order authorising such entry and inspection which order any such justice is hereby empowered to make.

(d) Every dairyman and the persons in his employment shall render such reasonable assistance to the medical officer or such authorised person or veterinary surgeon as aforesaid as may be required by such medical officer person or veterinary surgeon for all or any of the purposes of this section and any person refusing such assistance or obstructing such medical officer person or veterinary surgeon in carrying out the purposes of this section shall be liable to a penalty not exceeding five pounds.

(e) If in their opinion the dairyman fails to show cause why such an order should not be made as aforesaid the Council may make the said order and shall forthwith serve notice of the facts on the county council of any administrative county in which the dairy is situate and on the Local Government Board and if the dairy is situate outside the district on the council of the borough or district in which it is situate.

(f) The said order shall be forthwith withdrawn on the Council or their medical officer being satisfied that the milk supply has been changed or that it is not likely to cause tuberculosis to persons residing in the district.

(g) If any person after any such order has been made supplies any milk within the district in contravention of the order or sells it for consumption therein he shall be liable to a penalty not exceeding five pounds and if the offence continues to a daily penalty not exceeding forty shillings.

A.D. 1905. (II) A dairyman shall not be liable to an action for breach of contract if the breach be due to an order under this section.

Appeal.

57. The dairyman may appeal against an order of the Council made under the last preceding section or the refusal of the Council to withdraw any such order either to a petty sessional court having jurisdiction within the district or at his option if the dairy is situate outside the district to the Board of Agriculture and Fisheries who shall appoint an officer to hear such appeal. Such officer shall fix a time and place of hearing within the district and give notice thereof to the dairyman and the clerk not less than forty-eight hours before the hearing. Such officer shall for the purposes of the appeal have all the powers of a petty sessional court.

The Board of Agriculture and Fisheries may at any stage require payment to them by the dairyman of such sum as they deem right to secure the payment of any costs incurred by the Board of Agriculture and Fisheries in the matter of the appeal.

The court or the Board of Agriculture and Fisheries as the case may be may confirm vary or withdraw the order which is the subject of the appeal and may direct to and by whom the costs of the appeal (including any sum paid or payable to the Board of Agriculture and Fisheries as aforesaid) are to be paid but pending the decision of the appeal the order shall remain in force unless previously withdrawn by the Council.

Compensation to dairy-men.

58. If an order is made without due cause or if the Council unreasonably refuse to withdraw the order the dairyman shall if not himself in default be entitled to recover from the Council full compensation for any damage which he has sustained by reason of the making of the order or of the refusal of the Council to withdraw the order.

The court or the Board of Agriculture and Fisheries may determine and state whether an order which is the subject of appeal has been made without due cause and whether the Council have unreasonably refused to withdraw the order and whether the dairyman has been in default.

Any dispute as to the fact whether the order has been made or maintained without due cause or as to the fact of default where any such fact has not been determined by the court or Board of Agriculture and Fisheries or as to the fact of damage or as to the amount of compensation shall be determined in the manner provided by section 308 of the Public Health Act 1875 and that

section shall accordingly apply and have effect as if the same were
 herein re-enacted and in terms made applicable to any such dispute
 as aforesaid. A.D. 1905.

59. The Council shall cause to be given public notice of the
 effect of the provisions of this Part of this Act by advertisement in
 a local newspaper and by handbills or otherwise in such manner
 as they think sufficient and this Part of this Act shall come into
 operation at such time not being less than one month after the
 first publication of such an advertisement as aforesaid as the
 Council may fix. Public notice
to be given of
provisions of
Part VIII.

60. Offences under this Part of this Act may be prosecuted
 and penalties may be recovered by the Council before a petty
 sessional court having jurisdiction in the place where the dairy is
 situate or the offence is committed and not otherwise. Procedure.

61. All expenses incurred by the Council in carrying into
 execution the provisions of this Part of this Act shall be chargeable
 upon the district fund and general district rate and the Council may
 also charge upon the same fund and rate any expenses incurred by
 them in the application by a veterinary surgeon of the tuberculin
 or other reasonable test for the purpose of discovering tuberculosis
 to any cow whose milk is or was recently being supplied within the
 district Provided that no such test shall be applied except with
 the previous consent of the owner of such cow. Expenses.

62. This Part of this Act may be carried into execution by a
 committee of the Council formed in accordance with and subject to
 the provisions of the Fourth Schedule to the Diseases of Animals
 Act 1894 except that the committee shall consist wholly of members
 of the Council. Execution of
this Part of
Act by com-
mittee.

PART IX.

COMMON LODGING-HOUSES.

63.—(1) The keeper of every common lodging-house shall
 reside constantly and shall remain between the hours of nine o'clock
 in the afternoon and six o'clock in the morning in such house and
 shall manage control and exercise proper supervision over the same
 and the inmates thereof except at such times as some other person
 who is appointed by him for that purpose and whose name is
 registered at the office of the Council shall with the approval of
 the Council in writing under the hand of their officer appointed for
 that purpose (which approval and registration shall be revocable by
 Regulations
as to common
lodging-
house
keepers.

A.D. 1905. the Council) reside and remain in such house and manage control and exercise proper supervision over the same and the inmates thereof.

(2) Any person who shall offend against this enactment shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Sanitary conveniences in common lodging-houses.

64.—(1) Every common lodging-house shall be provided with sufficient and suitable sanitary conveniences having regard to the number of lodgers who may be received therein and also with proper separate sanitary conveniences for persons of each sex.

(2) Where it appears to the Council on the report of their inspector of nuisances that the provisions of this section are not complied with in the case of any common lodging-house the Council may if they think fit by notice require the keeper thereof to make such alterations and additions therein as may be required to provide such sufficient suitable and proper sanitary conveniences as aforesaid.

(3) Any person who shall neglect or refuse to comply with any such notice shall be liable for each default to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Registration of common lodging-houses and keepers.

65.—(1) Notwithstanding anything in the Public Health Act 1875 the registration of a common lodging-house or of the keeper of a common lodging-house shall operate for one year only and application for the renewal of such registration shall be made to the Council on or before the first day of December in every year.

(2)—(A) The Council may notwithstanding the provisions of section 78 of the Public Health Act 1875 refuse to register or to re-register any person as a common lodging-house keeper unless they are satisfied of his character and fitness for the position :

(B) Any person aggrieved by such refusal may appeal to a court of summary jurisdiction within fourteen days after such refusal provided he give twenty-four hours notice of such appeal and of the grounds thereof to the clerk and the court shall have power to make such order as they may think fit and to award costs

(3) Every person who without being registered in accordance with the Public Health Act 1875 and this Act shall keep a common lodging-house within the district and every person who

after the thirty-first day of December one thousand nine hundred and five shall keep a common lodging-house without the registration of such person and of such house being renewed for the current year shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. A.D. 1905.

66. Notice of the provisions of this Part of this Act shall be served upon the keeper of every common lodging-house within the district either personally or by leaving the same at the common lodging-house. Notice to
common
lodging-
house
keepers.

PART X.

SANITARY.

67.—(1) On complaint made on oath by the surveyor medical officer of health or the inspector of nuisances that he has reasonable grounds for believing the existence of a nuisance any justice may grant a warrant to such surveyor medical officer of health or inspector of nuisances to jointly or severally inspect any drain sanitary convenience or cesspool or any water supply sink rainwater cistern trap syphon pipe or other work or apparatus connected therewith and on such warrant being granted for that purpose or for the purpose of ascertaining the course of any such work the surveyor medical officer of health or inspector of nuisances or their authorised assistants (on production of their authority if so required) at all reasonable times in the daytime after not less than twelve hours notice in writing has been given to the occupier of the premises to which such drain sanitary convenience or cesspool water supply sink rainwater cistern trap syphon pipe or other work or apparatus is attached or if they are unoccupied to the owner or if such owner or occupier is not known or cannot be found left on such premises and in case of emergency without notice may enter with or without workmen on such premises and cause the ground to be opened wherever the surveyor medical officer of health or inspector of nuisances or their authorised assistants think fit doing as little damage as may be and if any person obstructs or attempts to obstruct or incites any person to obstruct the surveyor medical officer of health or inspector of nuisances or assistants in the exercise of any of the powers conferred by this section he shall for every such offence be liable to a penalty not exceeding five pounds. Inspection
of drains.

(2) If upon such inspection it shall be found that no nuisance exists or that the nuisance is not caused by or is not attributable

A.D. 1905. — to such drain sanitary convenience or cesspool water supply sink rainwater cistern trap syphon pipe or other work or apparatus the Council shall cause any of such works or apparatus which they may have taken up or disturbed to be reinstated and made good as soon as may be and the expenses of examining reinstating and making good the same shall be defrayed by the Council and full compensation shall be made by them for all damage or injury done or occasioned by such examination.

(3) If upon such inspection any drain sanitary convenience or cesspool water supply sink rainwater cistern trap syphon pipe or other work or apparatus is found to be in such a state as to cause a nuisance the Council shall cause notice to be served on the owner or occupier of the premises upon or in respect of which the inspection was made requiring him forthwith or within a reasonable time specified in the notice to do what is necessary to abate the nuisance and if such notice is not complied with the said owner or occupier shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings or the Council if they think fit in lieu of proceeding for a penalty may enter on the premises and execute the works and may recover the expenses incurred by them in so doing from the person in default in a summary manner.

(4) For the purposes of this section the expression "drain" includes a drain used for the drainage of more than one building whether owned or occupied by the same person or not.

Owners to
permit drains
to be tested.

68.—(1) Whenever the medical officer surveyor or inspector of nuisances has reasonable grounds for believing that the drains connected with any building are defective so as to cause risk to health he may after twenty-four hours notice and with the consent (except in the case of houses let in separate dwellings) of the owner or occupier of such building or in the event of objection by any such owner or occupier after obtaining an order of a court of summary jurisdiction apply such test (except the test of water under pressure) as he may consider efficient to such drains for the purpose of discovering any defects therein. Any owner or occupier who refuses notwithstanding such order to allow such test to be made shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(2) If the drains be found defective the owner or occupier of the premises shall be bound (subject to the terms of any lease or other contract) on receiving notice from the Council to that effect

specifying generally the nature of the defect to carry out all necessary operations for remedying the same within a reasonable time to be named in such notice and if he makes default in so doing the Council may enter and execute the works and recover the costs thereof from the owner or other person liable under the lease or contract in a summary manner or where the owner is the person liable as private improvement expenses are recoverable under the Public Health Acts.

A.D. 1905.
—

(3) For the purposes of this section the word "drain" includes any sewer which is not vested in the Council.

69. If it appear to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Council may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners and occupiers of such houses in such manner as the Council shall determine and if such drain is constructed by the Council such costs and expenses may be recovered by the Council from such owners and occupiers in a summary manner Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer Provided that the Council shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Council.

Council may order houses to be drained by a combined operation.

70. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Amendment of section 19 of Public Health Acts Amendment Act 1890.

71. Before any drain existing at the time of the passing of this Act and then not communicating with any sewer of the Council shall be made to communicate with any sewer of the Council the Council may require the same to be laid open for examination by the surveyor and no such communication shall be made until the surveyor shall certify that such drain may be properly made to communicate with such sewer.

Council may require old drains to be laid open for examination.

A.D. 1905.

Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Prohibition
of blowing
or inflating
carcases.

72. It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal slaughtered within or brought within the district and any person offending against this enactment or exposing or depositing for sale within the district a carcase blown or inflated or any part thereof shall be liable to a penalty not exceeding twenty shillings.

PART XI.

FINANCE AND MISCELLANEOUS.

Power to
borrow.

73. The Council may from time to time (in addition to any other moneys which they are now authorised to borrow) borrow at interest on the following securities for the following purposes (that is to say) :—

- (A) On the security of the district fund and general district rate for paying the costs and expenses of this Act as herein-after defined such sum as may be required ;
- (B) On the security of the gas revenue and the district fund and general district rate for the purposes of purchase of land for and for the erection of gasworks any sum not exceeding twenty thousand pounds and with the consent of the Local Government Board such further sums as may be necessary in relation to the gas undertaking ;
- (c) On the security of the district fund and general district rate and with the consent of the Local Government Board such further moneys as the Council may require for any other of the purposes of this Act.

Certain re-
gulations of
Public
Health Act
as to bor-
rowing not
to apply.

74. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sum which they may borrow under this Act shall not be reckoned.

Periods for
repayment
of moneys
borrowed.

75. The Council shall repay any moneys borrowed by them for paying the taxed costs of this Act within five years from the passing of this Act and all other moneys borrowed by them under the powers of this Act within the period of thirty years from the date or dates of borrowing the same :

Provided that moneys borrowed with the sanction of the Local Government Board shall be repaid within the periods not exceeding sixty years sanctioned by that Board. A.D. 1905.
—

76. The following provisions of the Act of 1902 with the necessary modifications and subject to the provisions of this Act shall apply mutatis mutandis to the further borrowing powers under this Act (namely) :— Application
of provisions
of Act of
1902.

Section 91 Power to Local Government Board to direct inquiries.

Section 92 Provisions of Public Health Act 1875 as to mortgages to apply.

Section 93 Power to borrow under Local Loans Act 1875.

Section 95 Mode of payment off of borrowed money.

Section 96 Power to re-borrow.

Section 97 Return respecting sinking fund to Local Government Board.

Section 98 Protection of lenders from inquiry.

Section 99 Council not to regard trusts.

Section 100 Saving for existing charges.

Section 101 Appointment of receiver.

77. Section 67 of the Act of 1896 (As to deficiency in receipts) is hereby repealed and from and after the passing of this Act any deficiency in the gas revenue and receipts of the Council in respect of the gas undertaking shall in the absence of a reserve fund applicable to the purpose or so far as such reserve fund is not sufficient for the purpose be from time to time made good out of the district fund or if that fund is insufficient for the purpose by an increase in the next general district rate after the deficiency is ascertained but the amount so paid shall be a debt due from the gas revenue account to the district fund. As to defi-
ciencies in
receipts.

78. All money borrowed by the Council under the powers of this Act shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable. Application
of money.

79. All powers rights and remedies given to the Council by this Act (except those given by Part II. of this Act) shall be deemed to be in addition to and not in derogation of any other powers rights and remedies conferred on them or on any committee appointed by them by the Public Health Acts and the Council or Powers of
Act to be
cumulative.

A.D. 1905. — such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not passed. Provided that no person shall incur more than one penalty (other than a daily penalty) for the commission of the same offence.

Authentica-
tion and ser-
vice of no-
tices &c.

80.—(1) Where any notice or demand under this Act requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council or his name affixed to any such notice or demand in print or by a stamp shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Recovery of
penalties.

81. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Compensa-
tion how to
be deter-
mined.

82. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts.

Saving for
indictments.

83. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of such matter from any penal or other consequences to which he would have been liable if such matter had not been made punishable by this Act. Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

As to bye-
laws.

84. All the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 (except so much thereof as relates exclusively to byelaws of a rural sanitary

authority) shall apply to all byelaws made by the Council under this Act. A.D. 1905.

85. Save as is hereby expressly provided all informations and complaints under and for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid and made by any officer of the Council duly authorised in that behalf or by the clerk or by any police officer acting for or within the district. Informations &c. by whom to be laid.

86. Where in any legal proceedings taken by or on behalf of the Council whether under this Act or under any general or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution of the Council or of any committee of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman of the Council or the clerk shall be *prima facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document. Evidence of appointments authority &c.

87. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding or revocation of any certificate licence consent or approval of or by the Council or of or by any officer or valuer of the Council or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Council may in like manner appeal. As to appeal.

88. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted. Damages and charges to be settled by justices.

89. All penalties recovered by the Council or any officer of the Council on their behalf whether under this Act or any byelaw thereunder shall be paid to the treasurer and shall be carried by him to the credit of the district fund or to such other fund as the Council direct. Penalties to be paid over to treasurer.

A.D. 1905.

Judges &c.
not dis-
qualified.Crown
rights.

90. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being a member of the Council or liable to any rate.

91. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Expenses of
execution of
Act.

92. Any expenses of the execution by the Council of this Act with respect to which no other provision is made may be defrayed by the Council out of the district fund and general district rate.

Expenses of
Act.

93. All the costs charges and expenses of and incident to and preparatory to the obtaining and passing of this Act or otherwise in relation thereto shall when taxed and ascertained by the taxing officer of the House of Lords or the House of Commons be paid by the Council in the first instance out of the district fund and general district rate but ultimately if the Council so determine out of money borrowed under this Act.

The SCHEDULE referred to in the foregoing Act.

GAS LANDS.

A piece of land belonging to the Council and adjoining their existing gasworks situate wholly in the parish of Ystradyfodwg in the county of Glamorgan containing by admeasurement 2,184 square yards or thereabouts and bounded on or towards the north-west by the existing gasworks of the Council on or towards the south-west by the Cymmer Branch of the Taff Vale Railway Company on or towards the south-east by land belonging to Arthur Hanning Vaughan Lee Esquire in lease to and in the occupation of John Leyshon and on or towards the north-east in part by land belonging to and in the occupation of the Council and in part by a lane at the rear of premises numbered 42 to 54 inclusive Eirw Road Porth in the said county.

Printed by EYRE and SPOTTISWOODE,

FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
OLIVER AND BOYD, EDINBURGH; or
E. PCNSONBY, 116, GRAFTON STREET, DUBLIN.